

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

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**PASCUAL ALMONTE, JUAN CEPEDA,
VALOIS ATANACIO, JOSE CANELA,
ADALBERTO GONZALEZ, MIGUEL VENTURA**

Index No.
Purchased 8-5-13

Plaintiff

Plaintiffs designate New York
County as the place of trial

- against -

The basis of the venue is
where the tort arose

**THE CITY OF NEW YORK,
THE NEW YORK CITY POLICE DEPARTMENT
POLICE OFFICER JUAN INFANTE,
Shield # 12575, POLICE OFFICER JOHN DOE
and POLICE OFFICER JOHN ROE**

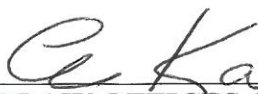
SUMMONS

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, NY
August 5, 2013



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, New York 10451
(212) 939-7251

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT

1 Police Plaza
New York, NY 10007

POLICE OFFICER JUAN INFANTE (Shield No. 12575)

New York City Police Department
1 Police Plaza
New York, NY 10007

POLICE OFFICER JOHN DOE

New York City Police Department
1 Police Plaza
New York, NY 10007

POLICE OFFICER JOHN ROE

New York City Police Department
1 Police Plaza
New York, NY 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X Index No. _____

**PASCUAL ALMONTE, JUAN CEPEDA
VALOIS ATANACIO, JOSE CANELA,
ADALBERTO GONZALEZ, MIGUEL VENTURA**

VERIFIED COMPLAINT

Plaintiff

- against -

**THE CITY OF NEW YORK,
THE NEW YORK CITY POLICE DEPARTMENT
POLICE OFFICER JUAN INFANTE,
Shield # 12575, POLICE OFFICER JOHN DOE
and POLICE OFFICER JOHN ROE**

Plaintiffs, PASCUAL ALMONTE, JUAN CEPEDA, VALOIS ATANACIO,
JOSE CANELA, ADALBERTO GONZALEZ and MIGUEL VENTURA, by their
attorneys, THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY,
principal, complaining of the defendants, respectfully shows to this Court and alleges the
following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff PASCUAL ALMONTE was a resident of New York County, City and State of New York.
2. At all times hereinafter mentioned, Plaintiff JUAN CEPEDA was a resident of New York County, City and State of New York.
3. At all times hereinafter mentioned, Plaintiff VALOIS ATANACIO was a resident of New York County, City and State of New York.

4. At all times hereinafter mentioned, Plaintiff JOSE CANELA was a resident of New York County, City and State of New York.
5. At all times hereinafter mentioned, Plaintiff ADALBERTO GONZALEZ was a resident of New York County, City and State of New York.
6. At all times hereinafter mentioned, Plaintiff MIGUEL VENTURA was a resident of New York County, City and State of New York.
7. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK (“CITY”), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
8. At all times hereinafter mentioned, defendant THE NEW YORK CITY POLICE DEPARTMENT (“POLICE”), was and is an agency of defendant CITY.
9. At all times hereinafter mentioned, defendant POLICE OFFICER JUAN INFANTE, SHIELD # 12575 (“P.O. INFANTE”) was and is a police officer employed by Defendants.
10. At all times hereinafter mentioned, defendant POLICE OFFICER JOHN DOE (“DOE”) was and is a police officer employed by Defendants.
11. At all times hereinafter mentioned, defendant POLICE OFFICER JOHN ROE (“ROE”) was and is a police officer employed by Defendants.

PROCEDURAL POSTURE

12. On June 27, 2012, Plaintiff PASCUAL ALMONTE served a Notice of Claim in writing sworn to on her behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in

which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

13. On June 20, 2012, Plaintiff JUAN CEPEDA served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
14. On July 2, 2012, Plaintiff VALOIS ATANACIO served a Notice of Claim in writing sworn to on her behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
15. On June 20, 2012, Plaintiff JOSE CANELA served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
16. On June 22, 2012, Plaintiff ADALBERTO GONZALEZ served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which

Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

17. On August 8, 2012, Plaintiff MIGUEL VENTURA served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
18. For all of the aforementioned Plaintiffs, more than thirty days have elapsed since service of said notices, and defendant CITY has failed to pay or adjust these claims.
19. 50-H hearings have been held for each Plaintiff.
20. This action has been commenced within one year and ninety days after the cause of actions for each Plaintiff accrued.
21. The Plaintiffs have duly complied with all conditions precedent to the commencement of this action.

PASCUAL ALMONTE

22. Paragraphs 1-21 are incorporated by reference as fully set forth herein.
23. On June 13, 2012, at approximately 6:50 p.m., inside of 911 Columbus Avenue in New York County, defendants, their agents, servants and employees, in particular defendants P.O. INFANTE, DOE and ROE, approached Plaintiff PASCUAL ALMONTE and handcuffed Plaintiff PASCUAL ALMONTE.

24. Defendants, including but not limited to P.O. INFANTE, DOE and ROE, removed Plaintiff PASCUAL ALMONTE to a Police Precinct and then to New York County Central Booking, where Plaintiff PASCUAL ALMONTE was searched, photographed and forced to remain in a jail cell.
25. On or about June 14, 2012, after approximately twenty-five (25) hours of incarceration, Plaintiff PASCUAL ALMONTE was released from New York County Central Booking without appearing before a Judge and without being charged with any crimes or offenses.

AS AND FOR A FIRST CAUSE OF ACTION FOR PLAINTIFF

PASCUAL ALMONTE : FALSE IMPRISONMENT

26. Paragraphs 1-25 are incorporated by reference as fully set forth herein.
27. On June 13, 2012, at approximately 6:50 p.m., inside of 911 Columbus Avenue in New York County, defendants, their agents, servants and employees, in particular defendants P.O. INFANTE, DOE and ROE, without just cause or provocation and with reckless and negligent disregard for the truth, intentionally and falsely accused Plaintiff PASCUAL ALMONTE of having committed the crime of Criminal Possession of a Controlled Substance.
28. Plaintiff PASCUAL ALMONTE was aware of Plaintiff's arrest and confinement as described in paragraph 23-25, and he did not consent to that arrest or confinement. Defendants intended to confine Plaintiff and the confinement was not privileged or authorized by any warrant, order, or other legal right.

29. As a result of being falsely imprisoned by the Defendants, Plaintiff PASCUAL ALMONTE sustained multiple injuries. Plaintiff PASCUAL ALMONTE was denied liberty. Plaintiff PASCUAL ALMONTE also suffered emotional distress, embarrassment, humiliation and fear and intimidation for Plaintiff's safety.

30. That by reason of the foregoing, Plaintiff PASCUAL ALMONTE has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A SECOND CAUSE OF ACTION FOR PLAINTIFF

PASCUAL ALMONTE: ASSAULT

31. Paragraphs 1-30 are incorporated by reference as though fully set forth herein.

32. P.O. INFANTE, DOE and ROE, acting as the agents, servants and employees of the Defendants, placed PASCUAL ALMONTE in apprehension of imminent harmful or offensive contact.

33. As a result of being assaulted by P.O. INFANTE, DOE and ROE, Plaintiff PASCUAL ALMONTE sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

34. That by reason of the foregoing, Plaintiff PASCUAL ALMONTE has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A THIRD CAUSE OF ACTION FOR PLAINTIFF

PASCUAL ALMONTE: BATTERY

35. Paragraphs 1-34 are incorporated by reference as though fully set forth herein.

36. When P.O. INFANTE, DOE and ROE grabbed PASCUAL ALMONTE and arrested PASCUAL ALMONTE, they subjected him to a harmful or offensive bodily contact. The police officers intended to make that contact without the consent of PASCUAL ALMONTE.

37. As a result of being battered by P.O. INFANTE, DOE and ROE, Plaintiff PASCUAL ALMONTE sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

38. That by reason of the foregoing, Plaintiff PASCUAL ALMONTE has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A FOURTH CAUSE OF ACTION FOR PLAINTIFF

PASCUAL ALMONTE: NEGLIGENCE

39. Paragraphs 1-38 are incorporated by reference as though fully set forth herein.

40. At all times hereinafter mentioned, the aforesaid false imprisonment, assault and battery were caused solely by the negligence of the Defendants, their agents, servants and/or employees.

41. As a result of the negligence of the Defendants, Plaintiff PASCUAL ALMONTE sustained multiple injuries, including loss of liberty, emotional

distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

42. That by reason of the foregoing, Plaintiff PASCUAL ALMONTE has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A FIFTH CAUSE OF ACTION FOR PLAINTIFF

PASCUAL ALMONTE: NEGLIGENT SUPERVISION

43. Paragraphs 1-42 are incorporated by reference as though fully set forth herein.

44. Defendant CITY, through its agents, servants and employees, including defendant POLICE, had the responsibility for supervising, disciplining, evaluating and training of P.O. INFANTE, DOE and ROE, and the other NYPD officers involved in this matter.

45. Defendants CITY and POLICE have grossly failed to train and properly supervise its police officers, particularly the police officers involved herein, regarding the law of arrest, search and seizure.

46. Defendants CITY and POLICE were negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as Plaintiff unless there is a court authorized warrant or sufficient cause.

47. The foregoing acts, omissions and systematic failures are customs and policies of the Defendants, which caused its police officers to falsely arrest, and illegally search and seize Plaintiff PASCUAL ALMONTE.

48. As a result of the negligence of defendants, Plaintiff PASCUAL ALMONTE sustained multiple injuries, including loss of liberty, emotional distress,

humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

49. That by reason of the foregoing, Plaintiff PASCUAL ALMONTE has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A SIXTH CAUSE OF ACTION FOR PLAINTIFF

PASCUAL ALMONTE: NEGLIGENT HIRING

50. Paragraphs 1-49 are incorporated by reference as though fully set forth herein.

51. The Defendants had the responsibility for hiring P.O. INFANTE, DOE and ROE.

52. The Defendants were negligent in hiring P.O. INFANTE, DOE and ROE.

53. As a result of the negligence of the Defendants, Plaintiff PASCUAL ALMONTE sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

54. That by reason of the foregoing, Plaintiff PASCUAL ALMONTE has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

JUAN CEPEDA

55. Paragraphs 1-54 are incorporated by reference as fully set forth herein.

56. On June 13, 2012, at approximately 6:50 p.m., inside of 911 Columbus Avenue in New York County, defendants, their agents, servants and employees, in

particular defendants P.O. INFANTE, DOE and ROE, approached Plaintiff JUAN CEPEDA and handcuffed Plaintiff JUAN CEPEDA.

57. Defendants, including but not limited to P.O. INFANTE, DOE and ROE, removed Plaintiff JUAN CEPEDA to a Police Precinct and then to New York County Central Booking, where Plaintiff JUAN CEPEDA was searched, photographed and forced to remain in a jail cell.

58. On or about June 14, 2012, after approximately twenty-five (25) hours of incarceration, Plaintiff JUAN CEPEDA was released from New York County Central Booking without appearing before a Judge and without being charged with any crimes or offenses.

AS AND FOR A SEVENTH CAUSE OF ACTION FOR PLAINTIFF

JUAN CEPEDA : FALSE IMPRISONMENT

59. Paragraphs 1-58 are incorporated by reference as fully set forth herein.

60. Plaintiff JUAN CEPEDA was aware of Plaintiff's arrest and confinement as described in paragraph 56-58, and he did not consent to that arrest or confinement. Defendants intended to confine Plaintiff and the confinement was not privileged or authorized by any warrant, order, or other legal right.

61. As a result of being falsely imprisoned by the Defendants, Plaintiff JUAN CEPEDA sustained multiple injuries. Plaintiff JUAN CEPEDA was denied liberty and he suffered emotional distress, humiliation and fear and intimidation for his safety.

62. That by reason of the foregoing, Plaintiff JUAN CEPEDA has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR AN EIGHTH CAUSE OF ACTION FOR PLAINTIFF

JUAN CEPEDA: ASSAULT

63. Paragraphs 1-62 are incorporated by reference as though fully set forth herein.

64. P.O. INFANTE, DOE and ROE, acting as the agents, servants and employees of the Defendants, placed JUAN CEPEDA in apprehension of imminent harmful or offensive contact.

65. As a result of being assaulted by P.O. INFANTE, DOE and ROE, Plaintiff JUAN CEPEDA sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

66. That by reason of the foregoing, Plaintiff JUAN CEPEDA has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A NINTH CAUSE OF ACTION FOR PLAINTIFF

JUAN CEPEDA: BATTERY

67. Paragraphs 1-66 are incorporated by reference as though fully set forth herein.

68. When P.O. INFANTE, DOE and ROE grabbed JUAN CEPEDA and arrested JUAN CEPEDA, they subjected him to a harmful or offensive bodily contact. The police officers intended to make that contact without the consent of JUAN CEPEDA.

69. As a result of being battered by P.O. INFANTE, DOE and ROE, Plaintiff JUAN CEPEDA sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

70. That by reason of the foregoing, Plaintiff JUAN CEPEDA has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A TENTH CAUSE OF ACTION FOR PLAINTIFF

JUAN CEPEDA: NEGLIGENCE

71. Paragraphs 1-70 are incorporated by reference as though fully set forth herein.

72. At all times hereinafter mentioned, the aforesaid false imprisonment was caused solely by the negligence of the Defendants, their agents, servants and/or employees.

73. As a result of the negligence of the Defendants, Plaintiff JUAN CEPEDA sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

74. That by reason of the foregoing, Plaintiff JUAN CEPEDA has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR PLAINTIFF

JUAN CEPEDA: NEGLIGENT SUPERVISION

75. Paragraphs 1-74 are incorporated by reference as though fully set forth herein.
76. Defendant CITY, through its agents, servants and employees, including defendant POLICE, had the responsibility for supervising, disciplining, evaluating and training of P.O. INFANTE, DOE and ROE, and the other NYPD officers involved in this matter.
77. Defendants CITY and POLICE have grossly failed to train and properly supervise its police officers, particularly the police officers involved herein, regarding the law of arrest, search and seizure.
78. Defendants CITY and POLICE were negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or sufficient cause.
79. The foregoing acts, omissions and systematic failures are customs and policies of the Defendants, which caused its police officers to falsely arrest, and illegally search and seize Plaintiff JUAN CEPEDA.
80. As a result of the negligence of defendants, Plaintiff JUAN CEPEDA sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.
81. That by reason of the foregoing, Plaintiff JUAN CEPEDA has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A TWELFTH CAUSE OF ACTION FOR PLAINTIFF

JUAN CEPEDA: NEGLIGENT HIRING

82. Paragraphs 1-81 are incorporated by reference as though fully set forth herein.

83. The Defendants had the responsibility for hiring P.O. INFANTE, DOE and ROE.

84. The Defendants were negligent in hiring P.O. INFANTE, DOE and ROE.

85. As a result of the negligence of the Defendants, Plaintiff JUAN CEPEDA sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

86. That by reason of the foregoing, Plaintiff JUAN CEPEDA has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

VALOIS ATANACIO

87. Paragraphs 1-86 are incorporated by reference as fully set forth herein.

88. On June 13, 2012, at approximately 6:50 p.m., inside of 911 Columbus Avenue in New York County, defendants, their agents, servants and employees, in particular defendants P.O. INFANTE, DOE and ROE, approached Plaintiff VALOIS ATANACIO and handcuffed Plaintiff VALOIS ATANACIO.

89. Defendants, including but not limited to P.O. INFANTE, DOE and ROE, removed Plaintiff VALOIS ATANACIO to a Police Precinct and then to New York County Central Booking, where Plaintiff VALOIS ATANACIO was searched, photographed and forced to remain in a jail cell.

90. On or about June 14, 2012, after approximately twenty-nine (29) hours of incarceration, Plaintiff VALOIS ATANACIO was released from New York County Central Booking without appearing before a Judge and without being charged with any crimes or offenses.

AS AND FOR A THIRTEENTH CAUSE OF ACTION FOR PLAINTIFF

VALOIS ATANACIO : FALSE IMPRISONMENT

91. Paragraphs 1-90 are incorporated by reference as fully set forth herein.

92. Plaintiff VALOIS ATANACIO was aware of Plaintiff's arrest and confinement as described in paragraphs 88-90, and he did not consent to that arrest or confinement.

93. Defendants intended to confine Plaintiff and this confinement was not privileged or authorized by any warrant, order, or other legal right.

94. As a result of being falsely imprisoned by the Defendants, Plaintiff VALOIS ATANACIO sustained multiple injuries. Plaintiff VALOIS ATANACIO was denied liberty. Plaintiff also suffered emotional distress, humiliation and fear and intimidation for Plaintiff's safety.

95. That by reason of the foregoing, Plaintiff VALOIS ATANACIO has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A FOURTEENTH CAUSE OF ACTION FOR PLAINTIFF

VALOIS ATANACIO: ASSAULT

96. Paragraphs 1-95 are incorporated by reference as though fully set forth herein.

97. P.O. INFANTE, DOE and ROE, acting as the agents, servants and employees of the Defendants, placed VALOIS ATANACIO in apprehension of imminent harmful or offensive contact.

98. As a result of being assaulted by P.O. INFANTE, DOE and ROE, VALOIS ATANACIO sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

AS AND FOR A FIFTEENTH CAUSE OF ACTION FOR PLAINTIFF

VALOIS ATANACIO: BATTERY

99. Paragraphs 1-98 are incorporated by reference as though fully set forth herein.

100. When P.O. INFANTE, DOE and ROE grabbed VALOIS ATANACIO and arrested VALOIS ATANACIO, they subjected him to a harmful or offensive bodily contact. The police officers intended to make that contact without the consent of VALOIS ATANACIO.

101. As a result of being battered by P.O. INFANTE, DOE and ROE, VALOIS ATANACIO sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

AS AND FOR A SIXTEENTH CAUSE OF ACTION FOR PLAINTIFF

VALOIS ATANACIO: NEGLIGENCE

102. Paragraphs 1-101 are incorporated by reference as though fully set forth herein. At all times hereinafter mentioned, the aforesaid false imprisonment, assault and battery were caused solely by the negligence of the Defendants, their agents, servants and/or employees.

103. As a result of the negligence of the Defendants, Plaintiff VALOIS ATANACIO sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

104. That by reason of the foregoing, Plaintiff VALOIS ATANACIO has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION FOR PLAINTIFF

VALOIS ATANACIO: NEGLIGENT SUPERVISION

105. Paragraphs 1-104 are incorporated by reference as though fully set forth herein.

106. Defendant CITY, through its agents, servants and employees, including defendant POLICE, had the responsibility for supervising, disciplining, evaluating and training of P.O. INFANTE, DOE and ROE, and the other NYPD officers involved in this matter.

107. Defendants CITY and POLICE have grossly failed to train and properly supervise its police officers, particularly the police officers involved herein, regarding the law of arrest, search and seizure.
108. Defendants CITY and POLICE were negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or sufficient cause.
109. The foregoing acts, omissions and systematic failures are customs and policies of the Defendants, which caused its police officers to falsely arrest, and illegally search and seize Plaintiff VALOIS ATANACIO.
110. As a result of the negligence of defendants, Plaintiff VALOIS ATANACIO sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.
111. That by reason of the foregoing, Plaintiff VALOIS ATANACIO has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A EIGHTEENTH CAUSE OF ACTION FOR PLAINTIFF

VALOIS ATANACIO: NEGLIGENT HIRING

112. Paragraphs 1-111 are incorporated by reference as though fully set forth herein.
113. The Defendants had the responsibility for hiring P.O. INFANTE, DOE AND ROE.

114. The Defendants were negligent in hiring P.O. INFANTE, DOE and ROE.

115. As a result of the negligence of the Defendants, Plaintiff VALOIS

ATANACIO sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

116. That by reason of the foregoing, Plaintiff VALOIS ATANACIO has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

JOSE CANELA

117. Paragraphs 1-116 are incorporated by reference as fully set forth herein.

118. On June 13, 2012, at approximately 6:50 p.m., inside of 911 Columbus Avenue in New York County, defendants, their agents, servants and employees, in particular defendants P.O. INFANTE, DOE and ROE, approached Plaintiff JOSE CANELA and handcuffed Plaintiff JOSE CANELA.

119. Defendants, including but not limited to P.O. INFANTE, DOE and ROE, removed Plaintiff JOSE CANELA to a Police Precinct and then to New York County Central Booking, where Plaintiff JOSE CANELA was searched, photographed and forced to remain in a jail cell.

120. On or about June 14, 2012, after approximately twenty-five (25) hours of incarceration, Plaintiff JOSE CANELA was released from New York County Central Booking without appearing before a Judge and without being charged with any crimes or offenses.

AS AND FOR A NINETEENTH CAUSE OF ACTION FOR PLAINTIFF

JOSE CANELA : FALSE IMPRISONMENT

121. Paragraphs 1-120 are incorporated by reference as fully set forth herein.
122. Plaintiff JOSE CANELA was aware of Plaintiff's arrest and confinement as described in paragraph 118-120, and he did not consent to that arrest or confinement.
123. Defendants intended to confine Plaintiff and this confinement was not privileged or authorized by any warrant, order, or other legal right.
124. As a result of being falsely imprisoned by the Defendants, Plaintiff JOSE CANELA sustained multiple injuries. Plaintiff was denied liberty. Plaintiff also suffered emotional distress, humiliation and fear and intimidation for Plaintiff's safety.
125. That by reason of the foregoing, Plaintiff JOSE CANELA has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A TWENTIETH CAUSE OF ACTION FOR PLAINTIFF

JOSE CANELA: ASSAULT

126. Paragraphs 1-125 are incorporated by reference as though fully set forth herein.
127. P.O. INFANTE, DOE and ROE, acting as the agents, servants and employees of the Defendants, placed JOSE CANELA in apprehension of imminent harmful or offensive contact.
128. As a result of being assaulted by P.O. INFANTE, DOE and ROE, Plaintiff JOSE CANELA sustained multiple injuries, including loss of liberty, emotional

distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

129. That by reason of the foregoing, Plaintiff JOSE CANELA has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A TWENTY-FIRST CAUSE OF ACTION FOR PLAINTIFF

JOSE CANELA: BATTERY

130. Paragraphs 1-129 are incorporated by reference as though fully set forth herein.

131. When P.O. INFANTE, DOE and ROE grabbed JOSE CANELA and arrested him, they subjected him to a harmful or offensive bodily contact. The police officers intended to make that contact without the consent of JOSE CANELA.

132. As a result of being battered by P.O. INFANTE, DOE and ROE, Plaintiff JOSE CANELA sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

133. That by reason of the foregoing, Plaintiff JOSE CANELA has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A TWENTY-SECOND CAUSE OF ACTION FOR PLAINTIFF

JOSE CANELA: NEGLIGENCE

134. Paragraphs 1-133 are incorporated by reference as though fully set forth herein.

135. At all times hereinafter mentioned, the aforesaid false imprisonment, assault and battery were caused solely by the negligence of the Defendants, their agents, servants and/or employees.

136. As a result of the negligence of the Defendants, Plaintiff JOSE CANELA sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, fear and intimidation for Plaintiff's safety.

137. That by reason of the foregoing, Plaintiff JOSE CANELA has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A TWENTY-THIRD CAUSE OF ACTION FOR PLAINTIFF

JOSE CANELA: NEGLIGENT SUPERVISION

138. Paragraphs 1-137 are incorporated by reference as though fully set forth herein.

139. Defendant CITY, through its agents, servants and employees, including defendant POLICE, had the responsibility for supervising, disciplining, evaluating and training of P.O. INFANTE, DOE and ROE, and the other NYPD officers involved in this matter.

140. Defendants CITY and POLICE have grossly failed to train and properly supervise its police officers, particularly the police officers involved herein, regarding the law of arrest, search and seizure.

141. Defendants CITY and POLICE were negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or sufficient cause.

142. The foregoing acts, omissions and systematic failures are customs and policies of the Defendants, which caused its police officers to falsely arrest, illegally search and seize, and assault Plaintiff JOSE CANELA.

143. As a result of the negligence of defendants, Plaintiff JOSE CANELA sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

144. That by reason of the foregoing, Plaintiff JOSE CANELA has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A TWENTY-FOURTH CAUSE OF ACTION FOR PLAINTIFF

JOSE CANELA: NEGLIGENT HIRING

145. Paragraphs 1-144 are incorporated by reference as though fully set forth herein.

146. The Defendants had the responsibility for hiring P.O. INFANTE, DOE and ROE.

147. The Defendants were negligent in hiring P.O. INFANTE, DOE and ROE.

148. As a result of the negligence of the Defendants, Plaintiff JOSE CANELA sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

149. That by reason of the foregoing, Plaintiff JOSE CANELA has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

ADALBERTO GONZALEZ

150. Paragraphs 1-149 are incorporated by reference as fully set forth herein.

151. On June 13, 2012, at approximately 6:50 p.m., inside of 911 Columbus Avenue in New York County, defendants, their agents, servants and employees, in particular defendants P.O. INFANTE, DOE and ROE, approached Plaintiff ADALBERTO GONZALEZ and handcuffed Plaintiff ADALBERTO GONZALEZ.

152. Defendants, including but not limited to P.O. INFANTE, DOE and ROE, removed Plaintiff ADALBERTO GONZALEZ to a Police Precinct and then to New York County Central Booking, where Plaintiff ADALBERTO GONZALEZ was searched, photographed and forced to remain in a jail cell.

153. On or about June 14, 2012, after approximately twenty-five (25) hours of incarceration, Plaintiff ADALBERTO GONZALEZ was released from New York County Central Booking without appearing before a Judge and without being charged with any crimes or offenses.

AS AND FOR A TWENTY-FIFTH CAUSE OF ACTION FOR PLAINTIFF

ADALBERTO GONZALEZ : FALSE IMPRISONMENT

154. Paragraphs 1-153 are incorporated by reference as fully set forth herein.

155. Plaintiff was aware of Plaintiff's arrest and confinement as described in paragraph 151-153, and he did not consent to that arrest or confinement.

156. Defendants intended to confine Plaintiff and this confinement was not privileged or authorized by any warrant, order, or other legal right.
157. As a result of being falsely imprisoned by the Defendants, Plaintiff ADALBERTO GONZALEZ sustained multiple injuries. Plaintiff was denied liberty. Plaintiff also suffered emotional distress, humiliation and fear and intimidation for his safety.
158. That by reason of the foregoing, Plaintiff ADALBERTO GONZALEZ has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A TWENTY-SIXTH CAUSE OF ACTION FOR PLAINTIFF

ADALBERTO GONZALEZ: ASSAULT

159. Paragraphs 1-158 are incorporated by reference as though fully set forth herein.
160. P.O. INFANTE, DOE and ROE, acting as the agents, servants and employees of the Defendants, placed ADALBERTO GONZALEZ in apprehension of imminent harmful or offensive contact.
161. As a result of being assaulted by P.O. INFANTE, DOE and ROE, ADALBERTO GONZALEZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.
162. That by reason of the foregoing, Plaintiff ADALBERTO GONZALEZ has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A TWENTY-SEVENTH CAUSE OF ACTION FOR PLAINTIFF

ADALBERTO GONZALEZ: BATTERY

163. Paragraphs 1-162 are incorporated by reference as though fully set forth herein.

164. When P.O. INFANTE, DOE and ROE grabbed ADALBERTO GONZALEZ and arrested him, they subjected him to a harmful or offensive bodily contact. The police officers intended to make that contact without the consent of ADALBERTO GONZALEZ.

165. As a result of being battered by P.O. INFANTE, DOE and ROE, ADALBERTO GONZALEZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

166. That by reason of the foregoing, Plaintiff ADALBERTO GONZALEZ has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A TWENTY-EIGHTH CAUSE OF ACTION FOR PLAINTIFF

ADALBERTO GONZALEZ: NEGLIGENCE

167. Paragraphs 1-166 are incorporated by reference as though fully set forth herein.

168. At all times hereinafter mentioned, the aforesaid false imprisonment, assault and battery were caused solely by the negligence of the Defendants, their agents, servants and/or employees.

169. As a result of the negligence of the Defendants, Plaintiff ADALBERTO GONZALEZ sustained multiple injuries, including loss of liberty, emotional

distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

170. That by reason of the foregoing, Plaintiff ADALBERTO GONZALEZ has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A TWENTY-NINTH CAUSE OF ACTION FOR PLAINTIFF

ADALBERTO GONZALEZ: NEGLIGENT SUPERVISION

171. Paragraphs 1-170 are incorporated by reference as though fully set forth herein.

172. Defendant CITY, through its agents, servants and employees, including defendant POLICE, had the responsibility for supervising, disciplining, evaluating and training of P.O. INFANTE, DOE and ROE, and the other NYPD officers involved in this matter.

173. Defendants CITY and POLICE have grossly failed to train and properly supervise its police officers, particularly the police officers involved herein, regarding the law of arrest, search and seizure.

174. Defendants CITY and POLICE were negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or sufficient cause.

175. The foregoing acts, omissions and systematic failures are customs and policies of the Defendants, which caused its police officers to falsely arrest, and illegally search and seize Plaintiff ADALBERTO GONZALEZ.

176. As a result of the negligence of defendants, Plaintiff ADALBERTO GONZALEZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

177. That by reason of the foregoing, Plaintiff ADALBERTO GONZALEZ has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A THIRTIETH CAUSE OF ACTION FOR PLAINTIFF

ADALBERTO GONZALEZ: NEGLIGENT HIRING

178. Paragraphs 1-177 are incorporated by reference as though fully set forth herein.

179. The Defendants had the responsibility for hiring P.O. INFANTE, DOE and ROE.

180. The Defendants were negligent in hiring P.O. INFANTE, DOE and ROE.

181. As a result of the negligence of the Defendants, Plaintiff ADALBERTO GONZALEZ sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

182. That by reason of the foregoing, Plaintiff ADALBERTO GONZALEZ has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

MIGUEL VENTURA

183. Paragraphs 1-182 are incorporated by reference as fully set forth herein.
184. On June 13, 2012, at approximately 6:50 p.m., inside of 911 Columbus Avenue in New York County, defendants, their agents, servants and employees, in particular defendants P.O. INFANTE, DOE and ROE, approached Plaintiff MIGUEL VENTURA and handcuffed Plaintiff MIGUEL VENTURA.
185. Defendants, including but not limited to P.O. INFANTE, DOE and ROE, removed Plaintiff MIGUEL VENTURA to a Police Precinct and then to New York County Central Booking, where Plaintiff MIGUEL VENTURA was searched, photographed and forced to remain in a jail cell.
186. On or about June 14, 2012, after approximately thirty-two (32) hours of incarceration, Plaintiff MIGUEL VENTURA was released from New York County Central Booking without appearing before a Judge and without being charged with any crimes or offenses.

AS AND FOR A THIRTY-FIRST CAUSE OF ACTION FOR PLAINTIFF

MIGUEL VENTURA: FALSE IMPRISONMENT

187. Paragraphs 1-186 are incorporated by reference as fully set forth herein.
188. Plaintiff was aware of Plaintiff's arrest and confinement as described in paragraph 184-186, and he did not consent to that arrest or confinement.
189. Defendants intended to confine Plaintiff and this confinement was not privileged or authorized by any warrant, order, or other legal right.
190. As a result of being falsely imprisoned by the Defendants, Plaintiff MIGUEL VENTURA sustained multiple injuries. Plaintiff was denied liberty. Plaintiff

also suffered emotional distress, humiliation and fear and intimidation for his safety.

191. That by reason of the foregoing, Plaintiff MIGUEL VENTURA has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A THIRTY-SECOND CAUSE OF ACTION FOR PLAINTIFF

MIGUEL VENTURA: ASSAULT

192. Paragraphs 1-191 are incorporated by reference as though fully set forth herein.

193. P.O. INFANTE, DOE and ROE, acting as the agents, servants and employees of the Defendants, placed MIGUEL VENTURA in apprehension of imminent harmful or offensive contact.

194. As a result of being assaulted by P.O. INFANTE, DOE and ROE, Plaintiff MIGUEL VENTURA sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

195. That by reason of the foregoing, Plaintiff MIGUEL VENTURA has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A THIRTY-THIRD CAUSE OF ACTION FOR

PLAINTIFF MIGUEL VENTURA: BATTERY

196. Paragraphs 1-196 are incorporated by reference as though fully set forth herein.

197. When P.O. INFANTE, DOE and ROE grabbed MIGUEL VENTURA and arrested him, they subjected him to a harmful or offensive bodily contact. The

police officers intended to make that contact without the consent of MIGUEL VENTURA.

198. As a result of being battered by P.O. INFANTE, DOE and ROE, Plaintiff MIGUEL VENTURA sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

199. That by reason of the foregoing, Plaintiff MIGUEL VENTURA has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A THIRTY-FOURTH CAUSE OF ACTION FOR PLAINTIFF

MIGUEL VENTURA: NEGLIGENCE

200. Paragraphs 1-199 are incorporated by reference as though fully set forth herein.

201. At all times hereinafter mentioned, the aforesaid false imprisonment, assault and battery were caused solely by the negligence of the Defendants, their agents, servants and/or employees.

202. As a result of the negligence of the Defendants, Plaintiff MIGUEL VENTURA sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

203. That by reason of the foregoing, Plaintiff MIGUEL VENTURA has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A THIRTY-FIFTH CAUSE OF ACTION FOR PLAINTIFF

MIGUEL VENTURA: NEGLIGENCE SUPERVISION

204. Paragraphs 1-203 are incorporated by reference as though fully set forth herein.

205. Defendant CITY, through its agents, servants and employees, including defendant POLICE, had the responsibility for supervising, disciplining, evaluating and training of P.O. INFANTE, DOE and ROE, and the other NYPD officers involved in this matter.

206. Defendants CITY and POLICE have grossly failed to train and properly supervise its police officers, particularly the police officers involved herein, regarding the law of arrest, search and seizure.

207. Defendants CITY and POLICE were negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or sufficient cause.

208. The foregoing acts, omissions and systematic failures are customs and policies of the Defendants, which caused its police officers to falsely arrest, and illegally search and seize Plaintiff MIGUEL VENTURA.

209. As a result of the negligence of defendants, Plaintiff MIGUEL VENTURA sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

210. That by reason of the foregoing, Plaintiff MIGUEL VENTURA has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A THIRTY-SIXTH CAUSE OF ACTION FOR PLAINTIFF

MIGUEL VENTURA: NEGLIGENT HIRING

211. Paragraphs 1-210 are incorporated by reference as though fully set forth herein.

212. The Defendants had the responsibility for hiring P.O. INFANTE, DOE and ROE.

213. The Defendants were negligent in hiring P.O. INFANTE; DOE and ROE.

214. As a result of the negligence of the Defendants, Plaintiff MIGUEL VENTURA sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

215. That by reason of the foregoing, Plaintiff MIGUEL VENTURA has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

WHEREFORE, Plaintiffs each demand judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, NY

August 5, 2013

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY

A handwritten signature in dark ink, appearing to read 'E. Kay', is written over a horizontal line.

BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiff

888 Grand Concourse, Suite 1H

Bronx, NY 10451

212-939-7251

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X Index No. _____

**PASCUAL ALMONTE, JUAN CEPEDA,
VALOIS ATANACIO, JOSE CANELA,
ADALBERTO GONZALEZ, MIGUEL VENTURA**

VERIFICATION

Plaintiff

- against -

**THE CITY OF NEW YORK,
THE NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER JUAN INFANTE,
Shield # 12575, POLICE OFFICER JOHN DOE
and POLICE OFFICER JOHN ROE**

I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiffs **PASCUAL ALMONTE, JUAN CEPEDA, VALOIS ATANACIO, JOSE CANELA, ADALBERTO GONZALEZ, MIGUEL VENTURA**, in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiffs is because each Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing Statements are true, under the penalties of perjury.

Dated: Bronx, NY
August 5, 2013



ELLIOT S. KAY